

A motion for reconsideration requires a showing of new or different facts, circumstances, or law along with a satisfactory explanation as to why the evidence was not presented at an earlier time. (Code Civ. Proc., § 1008; *Shiffer v. CBS Corp.* (2015) 240 Cal.App.4th 246, 255.) The moving party bears the burden of showing that the information supporting reconsideration is such that the moving party could not, with reasonable diligence, have discovered or produced it earlier. (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212–13.)

Here, judgment creditors respond to the court’s first concern by providing proofs of service of notice of levy as Exhibit B. Judgment creditors indicate they did not have these proofs of service from the sheriff’s department back when the motion was originally heard. While the court takes judgment creditors at their word that they did not have these documents when the motion was originally heard, these documents do not change the outcome of the motion because they do not address the court’s concern as judgment creditors have not provided a notice of levy directed to any judgment debtor. As to the court’s second concern regarding the recorded abstract of judgment, judgment creditors correctly point out that they did provide the recorded abstract of judgment provided as Exhibit L to the Kirby declaration filed January 29, 2026. While the court acknowledges its mistake, this does not change the outcome of the motion. Judgment creditors next re-brief the issue of forcing a sale of real property against a third-party purchaser in the underlying enforcement of judgment action. Judgment creditors cite to portions of *Miller and Starr*, Code of Civil Procedure section 697.390, and *Federal Deposit Ins. Corp. v. Charlton* (1993) 17 Cal.App.4th 1066. Of the new authorities cited, judgment creditors fail to present any reason why they could not have been cited when the motion was initially heard. Moreover, judgment creditors continue to focus on the language in *Charlton* that the judgment lien was enforceable against a third-party purchaser while failing to acknowledge that the third-party purchaser was a party in the *Charlton* case. Judgment creditors still have not cited to any authority that supports an order for sale of real property may be made against a non-party to an action out of the underlying enforcement of judgments action.

In sum, judgment creditors fall short of showing newly discovered information that could not have reasonably been presented to the court when this motion was initially decided. The motion for reconsideration is denied.

8. S-CV-0045347 Grayot, Chad v. Exclusive Auto Group

Request to Seal Records

Plaintiff and defendant Exclusive Auto Group, Inc., through their respective counsel, submitted to the court a stipulation and proposed order thereon to seal seven documents that have already been filed into this case. The court issued a Presiding Judge Notice setting this hearing. The parties have not submitted any additional information in the intervening time.

The request is procedurally and substantively deficient in a number of ways and cannot be granted. Preliminarily, when the clerk served the presiding judge notice, it served only the party who submitted the stipulation and proposed order—the plaintiff. There is no evidence defendant has been served notice of this hearing.

This request is not supported by a “declaration containing facts sufficient to justify the sealing” as required. (Cal. Rules of Court, rule 2.551(b)(1).) As the application is unsupported by any evidence, the court cannot make the requisite findings outlined in California Rules of Court, rule 2.550(d).

Even if the court could reach the merits, the court questions whether protecting plaintiff’s reputation as a businessperson is an “overriding interest that overcomes the right of public access to the record” as required by California Rules of Court, rule 2.550(d)(1).

Also, while the parties submitted the proposed redacted versions of the documents as an attachment to the stipulation and proposed order, and it appears they went to some lengths to specify what portions of the documents they are requesting to be sealed, the parties’ failure to lodge an unredacted version of the entirety of the 517 pages submitted with the stipulation pursuant to California Rules of Court, rule 2.551(b)(4) and the confusing descriptions of the locations of the documents (for example, “Exhibit 1 at Exhibit 5, at Attachment 1 at 7:18–19”) have made it overly cumbersome for the court to locate the proposed redacted portions of the documents and compare them with the unredacted documents already in the court file to determine if the proposed redactions are narrowly tailored.

Based on the foregoing, the request is denied without prejudice. Should the parties elect to renew the request, they shall do so by properly noticed motion in accordance with Rules 2.550 and 2.551 in the California Rules of Court.

9. S-CV-0049793 Ratzak, Jessica v. Thinkware Systems USA

Motion for Preliminary Approval

Plaintiff seeks preliminary approval of the parties’ class action settlement. The motion is unopposed. The court previously raised three concerns and continued the hearing for plaintiff to address those concerns. On June 16, 2026, plaintiff filed a supplemental declaration of counsel Todd M. Friedman with a supplemental declaration of Brandon Schwartz attached as Exhibit 1 thereto. This supplemental filing sufficiently addresses the court’s second and third noted concerns.

As to the court’s first noted concern, however, plaintiff provides that counsel has already served subpoenas on known third-party retailers and negotiated the response or received subpoenaed information from several of those third-party retailers. Plaintiff has not heard back from AAMP, which comprises approximately 19.4% of the sales of class products. Plaintiff states it sent a second subpoena on June 16, 2026, but plaintiff nonetheless believes the proposed timeframe (which includes notice to the class within 20 days of